

The Information Technology (Guidelines for Cyber Cafe) Rules, 2011

Source: <https://indiankanoon.org/doc/87156265/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

0

]

Union of India - Act

The Information Technology (Guidelines for Cyber Cafe) Rules, 2011

UNION OF INDIA

India

The Information Technology (Guidelines for Cyber Cafe) Rules, 2011

Rule THE-INFORMATION-TECHNOLOGY-GUIDELINES-FOR-CYBER-CAFE-RULES-2011 of 2011

Published on 11 April 2011

Commenced on 11 April 2011

[This is the version of this document from 11 April 2011.]

[Note: The original publication document is not available and this content could not be verified.]

The Information Technology (Guidelines for Cyber Cafe) Rules, 2011

Published vide Notification New Delhi, the 11th April, 2011

G.S.R. 315(E). - In exercise of the powers conferred by clause (zg) of sub-section (2) of section 87 read with sub-section (2) of section 79 of the Information Technology Act, 2000 (21 of 2000

), the Central Government hereby makes the following rules, namely :-

1.

Short title and commencement.

(1)

These rules may be called the Information Technology (Guidelines for Cyber Cafe) Rules, 2011.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires,-

(a)

"Act" means the Information Technology Act, 2000 (21 of 2000

);

(b)

"Appropriate Government" means the Central Government or the State Government or an Union Territory Administration;

(c)

"Cyber Cafe" means cyber cafe as defined in clause (na) of sub-section (1) of section 2 of the Act;

(d)

"computer resource" means a computer resource as defined in clause (k) of sub-section (1) of section 2 of the Act;

(e)

"Data" means data as defined in clause (o) of sub-section (1) of section 2 of the Act;

(f)

"Information" means information as defined in clause (v) of sub-section (1) of section 2 of the Act;

(g)

"Intermediary" means an intermediary as defined in clause (w) of sub-section (1) of section 2 of the Act;

(h)

"Registration Agency" means an agency designated by the Appropriate Government to register cyber cafe for their operation;

(i)

"Log Register" - means a register maintained by the Cyber Cafe for access and use of computer resource;

(j)

"User" means a person who avails or access the computer resource and includes other persons jointly participating in availing or accessing the computer resource in a cyber cafe.

(2)

All other words and expressions used and not defined in these rules but defined in the Act shall have the meanings respectively assigned to them in the Act.

3.

Agency for registration of cyber cafe.

(1)

All cyber cafes shall be registered with a unique registration number with an agency called as registration agency as notified by the Appropriate Government in this regard. The broad terms of registration shall include:

(i)

name of establishment;

(ii)

address with contact details including email address;

(iii)

whether individual or partnership or sole proprietorship or society or company;

(iv)

date of incorporation;

(v)

name of owner/partner/proprietor/director;

(vi)

whether registered or not (if yes, copy of registration with Registrar of Firms or Registrar of Companies or Societies); and

(vii)

type of service to be provided from cyber cafe

Registration of cyber cafe may be followed up with a physical visit by an officer from the registration agency.

(2)

The details of registration of cyber cafe shall be published on the website of the registration agency.

(3)

The Appropriate Government shall make an endeavour to set up on-line registration facility to enable cyber cafe to register on-line.

(4)

The detailed process of registration to be mandatorily followed by each Registration Agency notified by the Appropriate Government shall be separately notified under these rules by the central Government.

4.

Identification of User.

(1)

The Cyber Cafe shall not allow any user to use its computer resource without the identity of the user being established. The intending user may establish his identity by producing a document which shall identify the users to the satisfaction of the Cyber Cafe. Such document may include any of the following :-

(i)

Identity card issued by any School or College; or

(ii)

Photo Credit Card or debit card issued by a Bank or Post Office; or

(iii)

Passport; or

(iv)

Voter Identity Card; or

(v)

Permanent Account Number (PAN) card issued by Income-Tax Authority; or

(vi)

Photo Identity Card issued by the employer or any Government Agency;

(vi)

Driving License issued by the Appropriate Government; or

(vii)

Unique Identification (UID) Number issued by the Unique Identification Authority of India (UIDAI).

(2)

The Cyber Cafe shall keep a record of the user identification document by either storing a photocopy or a scanned copy of the document duly authenticated by the user and authorised representative of cyber cafe. Such record shall be securely maintained for a period of at least one year.

(3)

In addition to the identity established by an user under sub-rule (1), he may be photographed by the Cyber Cafe using a web camera installed on one of the computers in the Cyber Cafe for establishing the identity of the user. Such web camera photographs, duly authenticated by the user and authorised representative of Cyber Cafe, shall be part of the log register which may be maintained in physical or electronic form.

(4)

A minor without photo Identity card shall be accompanied by an adult with any of the documents as required under sub-rule (1).

(5)

A person accompanying a user shall be allowed to enter cyber cafe after he has established his identity by producing a document listed in sub-rule(1) and record of same shall be kept in accordance with sub-rule (2).

(6)

The Cyber cafe shall immediately report to the concerned police, if they have reasonable doubt or suspicion regarding any user.

5.

Log Register.

(1)

After the identity of the user and any person accompanied with him has been established as per sub-rule (1) of rule 4, the Cyber Cafe shall record and maintain the required information of each user as well as accompanying person, if any, in the log register for a minimum period of one year.

(2)

The Cyber Cafe may maintain an online version of the log register. Such online version of log register shall be authenticated by using digital or electronic signature. The log register shall contain at least the following details of the user, namely:-

(i)

Name

(ii)

Address

(iii)

Gender

(iv)

Contact Number

(v)

Type and detail of identification document;

(vii)

Date

(vii)

Computer terminal identification

(viii)

Log in Time

(ix)

Log out Time

(3)

Cyber Cafe shall prepare a monthly report of the log register showing date-wise details on the usage of the computer resource and submit Hard and soft copy of the same to the person or agency as directed by register agency by the 5th day of next month.

(4)

The cyber cafe owner shall be responsible for Storage and maintaining backups of following log records for each access or login by any user of its computer resource for at least one year :-

(i)

History of websites accessed using computer resource at cyber cafe;

(ii)

Logs of proxy server installed at cyber cafe.

Cyber Cafe may refer to "Guidelines for auditing and logging - CISG-2008-01" prepared and updated from time to time by Indian Computer Emergency Response Team (CERT-In) for any assistance related to logs. This document is available at www.cert-in.org.in

(5)

Cyber cafe shall ensure that log register is not altered and maintained in a secure manner for a period of at least one year.

6.

Management of Physical Layout and computer resource.

(1)

Partitions of Cubicles built or installed if any, inside the Cyber Cafe, shall not exceed four and half feet in height from the floor level.

(2)

The screen of all computers installed other than in Partitions or Cubicles, shall face 'outward', i.e. they shall face the common open space of the Cyber Cafe,

(3)

Any Cyber Cafe having cubicles or partitions shall not allow minors to use any computer resource in cubicles or partitions except when they are accompanied by their guardians or parents.

(4)

All time clocks of the computer systems and servers installed in the Cyber Cafe shall be synchronised with the Indian Standard Time.

(5)

All the computers in the cyber cafe may be equipped with the commercially available safety or filtering software so as to avoid as far as possible, access to the websites relating to pornography including child pornography or obscene information.

(6)

Cyber Cafe shall take sufficient precautions to ensure that their computer resource are not utilised for any illegal activity.

(7)

Cyber Cafe shall display a board, clearly visible to the users, prohibiting them from viewing pornographic sites as well as copying or downloading information which is prohibited under the law.

(8)

Cyber Cafe shall incorporate reasonable preventive measures to disallow the user from tampering with the computer system settings.

(9)

Cyber cafe shall maintain the user identity information and the log register in a secure manner.

(10)

Cyber cafe shall also maintain a record of its staff for a period of one year.

(11)

Cyber cafe shall not misuse or alter the information in the log register.

7.

Inspection of Cyber Cafe.

(1)

An officer authorised by the registration agency, is authorised to check or inspect cyber cafe and the computer resource to network established therein at any time for the compliance of these rules. The cyber cafe owner shall provide every related document, registers and any necessary information to the inspecting officer on demand.

Related AI tags, queries and research notes

Translation